Step Eight of Nine: Where the Protect Step Sits When You're Planning Ahead for Dad

The nine steps of the Medicaid Planning Roadmap, with yours marked.

The question about Dad's house and savings can feel like a subject all its own. It is one step in a longer process, the eighth of nine, and it helps to see what sits around it and who does which part.

This page shows the whole road, where this step sits on it, and who is involved after it.

Phase 1 · Assess

Understand where you are today.

1. **Understand** Care Needs → Levels of Care & Costs → Care Plan
   You finish with: Future Care Planning Assessment
2. **Organize** Income & Assets → Ownership & Expenses → Financial File
   You finish with: Family Financial Inventory
3. **Assess** Care & Nonfinancial Eligibility → Income & Assets → Barriers & Readiness
   You finish with: Medicaid Readiness Assessment

Phase 2 · Plan

Develop and implement your strategy.

4. **Plan** Barriers & Issues → Priorities & Professional Team → Written Plan
   You finish with: Advance Medicaid Planning Roadmap
5. **Legal** Authority & Documents → Property, Trusts & Transfers → Attorney Review
   You finish with: Legal Planning Review
6. **Financial** Costs & Runway → Asset Treatment & Tools → Strategy & Documentation
   You finish with: Long-Term Care Funding Plan

Phase 3 · Secure

Secure benefits, protect assets, and maintain eligibility.

7. **Apply** Prepare → Submit → Manage
   You finish with: Medicaid Application-Ready File
8. **Protect** What May Be Protected → What May Remain Exposed → What Needs Ongoing Attention
   You finish with: Asset Protection Assessment

   You are here. For a family planning ahead, this step is about understanding, not about doing anything with what Dad owns. It's finished when the family understands what may be protectable, what could be exposed, and which planning questions are worth having evaluated while there is time. Your family's part is a dated list of what Dad owns, how each thing is owned, and the questions you'd want answered before anyone changes anything.

9 **Maintain** Ongoing Requirements → Changes & Renewals → Maintenance System
You finish with: Medicaid Monitoring & Maintenance System

If you arrived here first

Families planning ahead often meet the question about the house long before the steps that come ahead of it on the road. That is an ordinary place to start. The earlier steps are where the fuller picture gets built: the care Dad might need and want, his finances gathered in one place, and where things would stand with Medicaid. A conversation at this step can begin from your own list, with the gaps marked as questions.

What this step produces

On the roadmap this step ends with an Asset Protection Assessment: assets that may receive protection, potential exposure, home and spouse considerations, estate-recovery issues, the legal, financial and planning questions, documentation, and review triggers. It is prepared with professionals, from Dad's facts. It doesn't confirm that any asset is protected, and it doesn't determine whether Dad would be eligible for Medicaid.

Several of the questions in it are legal ones. The federal long-term care site describes elder law attorneys as lawyers who deal daily with the issues surrounding old age, and lists estate planning among the things they do. Whether a person would qualify for Medicaid is a different matter again: for how to qualify in a given state, the same site names the State Medical Assistance office as the best source of information. [1] [2]

What happens next

For a family planning ahead, mostly upkeep. The list is kept current as accounts and circumstances change, and your Medicaid planner agrees review points with the family: after major life events, and when long-term care becomes more likely. After Protect comes Maintain, the ninth and last step, which for a family planning ahead may be a long way off.

Who is involved, by role

- You and your family: making the list, looking up whose name is on each thing, writing down your questions.
- Dad: it's his house and his savings. His own account of what he owns, what he wants, and his say over who sees what.
- Your Medicaid planner: reviews the family's list and how each thing is owned, identifies the legal and financial questions that need review, and agrees with the family when to look at it all again.
- An elder law attorney: reviews the legal questions, including estate recovery in Dad's state.
- A licensed financial professional: the financial questions, and anything involving an insurance or investment product.
- The state Medicaid agency: decides eligibility if Dad ever applies (source 2 below). That belongs to the Apply step.

What this page doesn't promise

How long any step takes, who will be available, or how things turn out. It doesn't say Dad would qualify for anything or that anything he owns is or will be protected, and it isn't legal, financial or tax advice. Families move through the steps at different speeds, and rules vary by state.

Ready for the next step?

You know where this step sits, what it produces and who is involved after it. The planning interview is the next thing to do from here: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

The nine steps are the Medicaid Planning Roadmap's own. The description of elder law attorneys and the pointer to the State Medical Assistance office come from the federal long-term care site.

1. Administration for Community Living (LongTermCare information), Will I Need a Lawyer?
2. Administration for Community Living (LongTermCare information), Medicaid

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